

HOUSE No. 3541

The Commonwealth of Massachusetts

PRESENTED BY:

Steven Owens

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act for greenhouse gas measuring and accounting truth.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 3541

By Representative Owens of Watertown, a petition (accompanied by bill, House, No. 3541) of Steven Owens relative to carbon dioxide equivalents and factors that impact statewide greenhouse gas emissions. Telecommunications, Utilities and Energy.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 873 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act for greenhouse gas measuring and accounting truth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 21N of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out the definition of “Statewide greenhouse gas
3 emissions” and inserting in place thereof the following definition:-

4 "Statewide greenhouse gas emissions", the total annual emissions of greenhouse gasses in
5 the commonwealth, including all emissions of greenhouse gasses from the generation of
6 electricity and the distribution and use of gas delivered to and consumed in the commonwealth,
7 accounting for electric transmission and distribution line losses, and accounting for losses of gas
8 in the commonwealth in transmission, storage, distribution, and use by consumers, whether the
9 electricity is generated or the gas is produced in the commonwealth or imported; provided,

10 however, that statewide greenhouse gas emissions shall be expressed in tons of carbon dioxide
11 equivalents for both a timeframe of 20 years and for a timeframe of 100 years.

12 SECTION 2. Section 2 of said chapter 21N is hereby amended by striking out subsection
13 (c) and inserting in place thereof the following:-

14
15 (c) The department shall annually publish a state greenhouse gas emissions inventory that
16 includes comprehensive estimates and measurements as available of the quantity of greenhouse
17 gas emitted in the commonwealth for the last years in which data is available; provided, (i) that
18 the inventory shall use a timeframe of 20 years to calculate the global warming impact of short-
19 acting greenhouse gasses and a timeframe of 100 years to calculate the global warming impact of
20 long-acting greenhouse gasses; and (ii) that updated emissions factors, carbon dioxide
21 equivalencies, and accounting methods shall be applied retroactively to 1990. If such updates
22 are not consistent with federal and other reporting requirements, the department shall report two
23 statewide greenhouse gas emissions results side-by-side: (i) the results of the updated method
24 using data specific to the commonwealth and the best available science and data including
25 separation of short-acting and long-acting greenhouse gasses, and (ii) the results of the alternate
26 accounting method required by federal or other entities.

27 SECTION 3: Said Chapter 21N is hereby amended by adding the following section:-

28
29 Section 13. The department shall require ongoing monitoring of greenhouse gas
30 emissions in the commonwealth using (i) statistically significant sampling methods and

locations; (ii) continuous or near continuous direct measurements of atmospheric greenhouse gas emissions with significant environmental impact, including but not limited to carbon dioxide, methane, nitrous oxide and hydrofluorocarbons; and (iii) the best available scientific methodology. Such monitoring shall be conducted by a qualified independent contractor chosen jointly by the department and the secretary. Emissions data collected shall be: (i) publicly available for research; (ii) compared annually to the emissions data in the greenhouse gas emissions inventory established pursuant to section 2(c) of this chapter; and (iii) analyzed to evaluate the source of any significant difference between emissions data collected under this section and emissions data reported under section 2(c). The department shall report such analysis with the statewide greenhouse gas emissions inventory.